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February 10, 2025

AS AMENDED

SENATE BILL NO. 777

By: Jett

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[ wildlife - harvesting - sales - game fish -
repealer - effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 6-313, is amended to read as follows:

Section 6-313. A. All catfish, minnows, fingerlings, fish, frogs, and other aquatic species which are legally produced, pursuant to the provisions of this act, shall be confined to the lands and waters of the licensee in such a manner so as to prohibit:

1. Contact with wild fish or other aquatic species in public waters; and

2. Such wild fish or other aquatic species ~~in~~ from being
commercially harvested from public waters from and becoming a part
of the commercial production sold as a wild-born commodity. As used
in this paragraph, "wild-born" means wild fish or aquatic species
born in public waters and not introduced through aquaculture.

B. 1. Except as otherwise provided by this subsection, the Oklahoma Department of Agriculture, Food, and Forestry shall not

1 restrict the manner in which persons, licensed pursuant to this act,
2 gather or impound aquatic species raised within the impoundments in
3 their commercial operations.

4 2. No person shall ~~sell or attempt to sell game fish and/or~~
5 ~~paddlefish obtained from public waters that have been commingled~~
6 ~~with privately produced fish subject to the provisions of this act~~
7 capture wild fish or aquatic species for direct sale. Licensed
8 producers may harvest both game fish and nongame fish from public
9 waters for use in aquaculture; provided, that the licensed producer
10 complies with all applicable regulations set forth by the Department
11 of Wildlife Conservation.

12 C. No licensee may receive, free of charge, any catfish,
13 minnow, fingerling, fish, frog or other aquatic species from the
14 state or federal government.

15 SECTION 2. AMENDATORY 29 O.S. 2021, Section 2-115, is
16 amended to read as follows:

17 Section 2-115. "Game fish" is a fish normally sought after by
18 sportsmen, and includes only largemouth bass, smallmouth bass, white
19 bass, spotted bass, black crappie, white crappie, northern pike,
20 trout, sauger, saugeye, striped bass, hybrid striped bass, walleye,
21 paddlefish, blue catfish and channel catfish. Blue catfish and
22 channel catfish are herein defined to mean "forked tail" catfish.

23 SECTION 3. REPEALER 29 O.S. 2021, Section 6-303.1, is
24 hereby repealed.

1 SECTION 4. This act shall become effective November 1, 2025.

2 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
3 February 10, 2025 - DO PASS AS AMENDED
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